

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

Case No.: 2017-CC-_____

vs.

ROSARIO ALANIZ and ANY UNKNOWN
TENANT(s),
Defendants.

_____ /

**COMPLAINT SEEKING, EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE
MANOR, sues the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s),
in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of the real property in Manatee County, Florida, as authorized by Section 723.061 of Florida Statutes.
2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida, and doing business under the name Colonial Mobile Manor at all times relevant.
3. Defendant, ROSARIO ALANIZ, is a natural person believed to own a double-wide mobile home located at 900 9th Avenue East, Lot 42, Palmetto, Manatee County, Florida, 34221.

4. Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot 42, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 9th Avenue East, Palmetto, Florida, 34221, known as COLONIAL MOBILE MANOR, including Lot 42.

6. Plaintiff, as landlord, leased to Defendant, ROSARIO ALANIZ, Lot 42 of the above-stated mobile home park at a monthly rental fee of \$492.00 pursuant to Florida Statute §723.031.

7. The Defendant, ROSARIO ALANIZ, has violated Colonial Mobile Manor Rules and Regulations, Rule 3, by allowing persons who have not been approved or even applied for residency, including persons under the age of 40, to continue to reside in her home on Lot 42. The Rule clearly states that all persons must be approved in advance to reside in the Park. It further states that no one under the age of 40 may reside in any home in the Park under any circumstances.

8. On August 15, 2017, the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), were notified by certified mail, return receipt requested, that they were in violation of Rule 3, by allowing persons who have never applied for residency, including persons under the age of 40, to continue to reside in her home. Said Defendants were provided seven (7) days to correct the non-compliance. A true copy of the letter and certification is attached to this Complaint as Plaintiff's Exhibit "A".

9. On August 16, 2017, the Plaintiff further served by posting on Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), a copy of the Seven (7) Day Notice of Violation of Park Rules and Regulations at the residence pursuant to Florida Statute §723.061(c.) A copy of proof of posting the Seven (7) Day Notice of Violation of Park Rules and Regulations

(First Notice) is attached as Exhibit "B".

10. Subsequent to receipt of the first notice, Defendant(s), ROSARIO ALANIZ or ANY UNKNOWN TENANT(s) residing in Lot 42, continued to violate Rule 3 of the Rules and Regulations of Colonial Mobile Manor by allowing persons who have never applied for residency and persons under the age of 40 to continue to reside in Lot 42.

11. As a result of the Defendants' failure to comply with the park rule that prohibits unapproved persons and persons under the age of 40 to reside in her home on Lot 42, on August 29, 2017, the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), were notified by certified mail, return receipt requested, that they remained in violation of the park rules and were notified that their right to reside in Colonial Mobile Manor was terminated. A true copy of the notice by certified mail is attached to this Complaint as Plaintiff's Exhibit "C".

12. On August 29, 2017, the Plaintiff further posted on Defendant(s), ROSARIO ALANIZ, and ANY UNKNOWN TENANT(s), a copy of the notice of termination of their right to reside in Colonial Mobile Manor. A copy of the posted notice is attached as Exhibit "D".

13. As of October 5, 2017, more than 30 days since the date of termination of the Defendant(s) right to reside in Colonial Mobile Manor will have elapsed, the Defendant(s) have failed to vacate the premises and failed to comply with the Plaintiff's Rule 3 regarding Occupancy in the Park.

14. The Plaintiff has refused to accept rent since it discovered that the Defendant(s) were in violation of the rules and regulations of the Park. The Plaintiff has thus complied with all conditions precedent to the bringing of this action.

15. ANY UNKNOWN TENANT(s), may reside or have an interest in Lot 42 of

COLONIAL MOBILE MANOR, but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

16. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

17. Plaintiff is entitled to the application of Fla. Stat. §51.011 (summary procedure) and for this matter to be expeditiously determined.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment and writ for possession of the premises together with costs and reasonable attorney's fees against Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II: ACTION FOR DAMAGES

18. This is an action against Defendant, ROSARIO ALANIZ, for damages that do not exceed \$5,000.00 exclusive of costs and attorney fees.

19. Plaintiff re-alleges the allegations of Count I as if fully set forth herein.

20. As of the date set forth in this Complaint, the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), will be holding over after termination of their right to reside in Lot 42 of Colonial Mobile Manor arising out of their violation of the Rules and Regulations of Colonial Mobile Manor, Rule 3.

21. Plaintiff has incurred costs and attorney fees arising out of the bringing of the instant cause of action for possession of the premises. Further, if ROSARIO ALANIZ are determined by the Court to be tenants at sufferance, they will be indebted to Plaintiff in an amount determined by the Court pursuant to Florida Statutes.

22. Plaintiffs have retained the undersigned to represent them with regard to this cause of action and have agreed to pay a reasonable attorney fee for which the Defendant, ROSARIO ALANIZ, is responsible by virtue of Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, ROSARIO ALANIZ, for damages, costs, and attorney fees.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

23. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

24. The Plaintiff re-alleges the facts contained within paragraphs 1 through 17 and paragraphs 18 through 22 as though fully set forth herein.

25. Defendant, ROSARIO ALANIZ, is the registered owner of:

1973 Manac Inc.
Mobile Home
VIN # O632689578A and 0632689578B

located on Lot 42 of the property leased by the Plaintiff to the Defendant.

26. Upon the Plaintiff being determined to be entitled to judgment in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, maintenance fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

27. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

28. The Plaintiff is entitled to credit toward the purchase of said mobile home in the

sum representing all of Plaintiff's judgment against the Defendant, ROSARIO ALANIZ, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s) at 900 9th Avenue East, Lot 42, Palmetto, Florida 34221 this 5th day of October, 2017.

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